

ROSTER RECORD, 20 March 2023 to 1 September 2024

Working analysis of the published Switchboard rosters held by the Appellant (documents/rosters/2023-24_published), prepared 6 September 2026. INTERNAL. Cell entries were read by eye from scanned rosters and must be checked against the page before any use in a filing. Codes: E = early (start 06:00 or 07:00), L = late (14:00 or 15:00), N = night (22:00 or 23:00), x = marked off, · = blank, AL = annual leave, RDO. Uncovered = shifts shown in the roster's own Uncovered Shifts row.

A. Your line, fortnight by fortnight

Fortnight	Roster	Mo	Tu	We	Th	Fr	Sa	Su	Mo	Tu	We	Th	Fr	Sa	Su	Unc.	Note
20 Mar 23 - 02 Apr 23	2023 PP21 v1.0	E07	E07	·	·	L14	L15	L15	·	N23	N23	N23	x	x	x	0	
03 Apr 23 - 16 Apr 23	2023 PP22 v1.0	E06	E07	L14	L15	·	·	E07	N23	N23	N23	x	x	x	·	0	Easter 7-10 Apr: rostered Sun 9 (E07) and Mon 10 (N23) only
17 Apr 23 - 30 Apr 23	2023 PP23 v1.0	L14	L14	L15	·	·	E06	E06	·	N23	N23	N23	x	x	x	0	
01 May 23 - 14 May 23	2023 PP24 v1.0	L15	·	L14	L14	N23	N23	x	x	x	E07	E07	E07	·	·	3	Labour Day 1 May worked L15
15 May 23 - 28 May 23	2023 PP25 v1.0	E07	E07	L14	·	E07	E07	E07	N23	N23	x	x	x	·	·	2	
29 May 23 - 11 Jun 23	2023 PP26 v1.0	N22	N22	N22	x	x	x	·	L14	L14	·	·	E07	E07	E07	1	
12 Jun 23 - 25 Jun 23	2023 PP27 v1.0	·	L14	L14	L14	N23	N23	x	x	x	E07	E07	E06	·	·	0	
26 Jun 23 - 09 Jul 23	2023-24 PP28/01 v1.0	N22	N22	N22	x	x	x	·	L14	L15	·	E07	E07	L14	L14	0	
18 Sep 23 - 01 Oct 23	2023-24 PP07 v1.0	E06	E07	·	·	L15	L15	L15	L14	N23	N23	x	x	x	·	5	first fortnight held after the 10 Jul-17 Sep gap; 5 uncovered shifts
02 Oct 23 - 15 Oct 23	2023-24 PP08 v1.0	E06	E06	L14	·	·	E06	E06	·	N22	N22	N23	x	x	x	5	5 uncovered shifts; full time from 16 Oct 2023
30 Oct 23 - 12 Nov 23	2023-24 PP11 v2.0	·	RDO	E07	E06	E06	L14	L14	x	x	E07	E07	E06	L14	L14	1	issued as v2.0 (a reissue)
13 Nov 23 - 26 Nov 23	2023-24 PP12 v1.0	x	·	E07	E06	E06	E06	E07	·	L14	L14	N22	N22	N22	x	2	GP 16 Nov (poor sleep) falls inside five early starts 15-19 Nov; sick 21-22 Nov
11 Dec 23 - 24 Dec 23	2023-24 PP14 v1.0	x	x	·	E06	E06	E07	·	E07	E07	L14	RDO	N23	N23	N23	0	
25 Dec 23 - 07 Jan 24	2023-24 PP15 v1.0	N23	x	x	x	E07	E07	E06	N23	N23	x	x	x	E07	E07	3	Christmas night and New Year night; sick 2 Jan after E06 then N23
22 Jan 24 - 04 Feb 24	2024 PP17 v1.0	E07	E07	·	AL	AL	E06	L15	·	·	·	AL	AL	AL	AL	1	annual leave block; 26 Jan on leave
05 Feb 24 - 18 Feb 24	2024 PP18 v1.0	AL	·	L14	L15	N23	N23	x	x	x	E06	E06	E06	L15	L15	0	9 Feb: the 7-hour shift Payroll later corrected
19 Feb 24 - 03 Mar 24	2024 PP19 v1.0	L15	L14	·	L15	RDO	·	·	E06	E06	E06	E07	·	L14	L14	0	COVID; pandemic leave 20 Feb; declined twice, approved 29 Feb
04 Mar 24 - 17 Mar 24	2024 PP20 v1.0	N23	N23	N23	x	x	x	E07	E06	E06	L15	·	L15	L15	L15	6	ends Sun 17 Mar L15 (finish 23:00); 6 uncovered shifts
18 Mar 24 - 31 Mar 24	2024 PP21 v1.0 (NO SHEPHERD LINE)	?	?	?	?	?	?	?	?	?	?	?	?	?	?	1	PUBLISHED ROSTER HAS NO LINE FOR SHEPHERD; the 06:00 start on 18 Mar is not on it; sick 19 Mar
01 Apr 24 - 14 Apr 24	2024 PP22 v1.0	L14	N23	x	x	x	E07	E07	E07	E06	RDO	·	L14	L15	L15	1	1 Apr L14 then 2 Apr N23; 8 Apr pay/fatigue email
15 Apr 24 - 28 Apr 24	2024 PP23 v1.0 (a) original	L15	L15	L15	·	E07	E06	E06	RDO	N23	N23	N23	x	x	x	0	(a) nights 23-25 then off 26-28 then nights 29 Apr: the pattern raised 16 Apr

Fortnight	Roster	Mo	Tu	We	Th	Fr	Sa	Su	Mo	Tu	We	Th	Fr	Sa	Su	Unc.	Note
	2024 PP23 v1.0 (b) 'updated'	L15	L15	L15	·	E07	E06	E06	RDO	E07	E06	·	N23	N23	N23		(b) nights moved to 26-28 Apr: six consecutive nights 26 Apr-2 May
29 Apr 24 - 12 May 24	2024 PP24 v1.0 (a) original	N22	N22	N22	x	x	x	E06	E06	E06	E06	RDO	E07	E06	E06	0	(a) four earlies 5-8 May, RDO, then earlies; sick 7 May
	2024 PP24 v1.0 (b) 'updated'	N22	N22	N22	x	x	x	E06	E06	E06	E06	·	L14	L14	L14		(b) earlies then lates 10-12 May; on-call rows for Ms Taylor and Ms Stibbard added
13 May 24 - 26 May 24	2024 PP25 v1.0	L15	L15	L15	·	RDO	E06	E06	E06	N22	N22	N22	x	x	x	0	13-14 May sick (PID 13 May; retraction request 15 May)
27 May 24 - 09 Jun 24	2024 PP26 v1.0	E06	L14	L14	·	E07	E07	E07	L15	·	·	·	L14	L14	L14	0	31 May sick; 7-9 Jun lates all taken as sick; 10 Jun LWOP; 11-12 Jun bereavement
10 Jun 24 - 23 Jun 24	2024 PP27 v1.0	N22	N22	N22	x	x	x	·	L15	L14	L14	RDO	E06	E06	E07	0	nights 10-12 Jun on bereavement/LWOP; 17 Jun onward LWOP; onset 18 Jun

Fortnights not held: 10 Jul to 17 Sep 2023; 16 to 29 Oct 2023; 27 Nov to 10 Dec 2023; 8 to 21 Jan 2024. Reissued or duplicated fortnights in the pack: 30 Oct to 12 Nov 2023 (v2.0), 15 to 28 Apr 2024 (two files, both labelled v1.0), 29 Apr to 12 May 2024 (two files, both v1.0), 19 Aug to 1 Sep 2024 (v2.0). The 18 to 31 Mar 2024 roster as published carries no line for the Appellant.

B. Sick and other leave against the rostered shift

From the Payroll leave takings report of 4 September 2026, matched to the published roster for the day and the two days before it. Only leave in the roster window is shown. 'n/h' = fortnight not held.

Date	Leave	Hrs	Rostered	Day -2	Day -1	Day +1
Thu 30 Mar 23	Sick - Charged to Rec Leave	8.0	N23	N23	N23	x
Mon 17 Apr 23	Sick Leave	8.0	L14	x	.	L14
Fri 12 May 23	Sick - No Pay	1.8	E07	E07	E07	.
Fri 12 May 23	Sick Leave	6.2	E07	E07	E07	.
Thu 15 Jun 23	Sick - No Pay	1.9	L14	L14	L14	N23
Thu 15 Jun 23	Sick Leave	6.1	L14	L14	L14	N23
Wed 21 Jun 23	Sick - Charged to Rec Leave	24.0	E07	x	x	E07
Mon 26 Jun 23	Sick - Charged to Rec Leave	8.0	N22	.	.	N22
Tue 27 Jun 23	Sick - Charged to Rec Leave	8.0	N22	.	N22	N22
Wed 28 Jun 23	Sick - Charged to Rec Leave	8.0	N22	N22	N22	x
Fri 07 Jul 23	Sick - No Pay	4.3	E07	.	E07	L14
Fri 07 Jul 23	Sick Leave	3.7	E07	.	E07	L14
Mon 07 Aug 23	Sick - No Pay	2.2	n/h	n/h	n/h	n/h
Mon 07 Aug 23	Sick Leave	5.8	n/h	n/h	n/h	n/h
Tue 12 Sep 23	Sick - No Pay	1.4	n/h	n/h	n/h	n/h
Tue 12 Sep 23	Sick Leave	6.6	n/h	n/h	n/h	n/h
Mon 18 Sep 23	Sick - No Pay	6.7	E06	n/h	n/h	E07
Mon 18 Sep 23	Sick Leave	1.4	E06	n/h	n/h	E07
Thu 09 Nov 23	Sick Leave	7.6	E07	x	E07	E06
Tue 21 Nov 23	Sick - Charged to Rec Leave	15.2	L14	E07	.	L14
Tue 02 Jan 24	Sick Leave	7.6	N23	E06	N23	x
Sun 14 Jan 24	Exceptional Circumstances Leave Full Pay	30.9	n/h	n/h	n/h	n/h
Mon 22 Jan 24	Exceptional Circumstances Leave Full Pay	15.2	E07	n/h	n/h	E07
Thu 25 Jan 24	Exceptional Circumstances Leave Full Pay	7.6	AL	E07	.	AL
Sat 27 Jan 24	Exceptional Circumstances Leave Full Pay	15.2	E06	AL	AL	L15
Fri 09 Feb 24	Leave Without Pay	0.9	N23	L14	L15	N23
Mon 19 Feb 24	Sick Leave	7.6	L15	L15	L15	L14
Tue 20 Feb 24	Pandemic Full Pay Leave	30.4	L14	L15	L15	.
Wed 28 Feb 24	Leave Without Pay	0.9	E06	E06	E06	E07
Mon 11 Mar 24	Sick Leave	0.9	E06	x	E07	E06
Tue 19 Mar 24	Sick Leave	7.6	?	L15	?	?
Sun 24 Mar 24	Sick Leave	0.5	?	?	?	?
Tue 07 May 24	Sick - Charged to Rec Leave	7.6	E06	E06	E06	E06
Mon 13 May 24	Sick - No Pay	0.9	L15	L14	L14	L15
Mon 13 May 24	Sick Leave	6.7	L15	L14	L14	L15
Tue 14 May 24	Sick - No Pay	7.6	L15	L14	L15	L15
Fri 31 May 24	Sick - Charged to Rec Leave	7.6	E07	L14	.	E07
Fri 07 Jun 24	Sick - Charged to Rec Leave	7.6	L14	.	.	L14
Sat 08 Jun 24	Sick - Charged to Rec Leave	6.6	L14	.	L14	L14
Sat 08 Jun 24	Sick Leave	1.0	L14	.	L14	L14
Sun 09 Jun 24	Sick - No Pay	3.6	L14	L14	L14	N22
Sun 09 Jun 24	Sick Leave	4.0	L14	L14	L14	N22
Mon 10 Jun 24	Leave Without Pay	7.6	N22	L14	L14	N22
Tue 11 Jun 24	Bereavement Leave	15.2	N22	L14	N22	N22
Mon 17 Jun 24	Leave Without Pay	7.6	L15	x	.	L14

Date	Leave	Hrs	Rostered	Day -2	Day -1	Day +1
Tue 18 Jun 24	Leave Without Pay	7.6	L14	.	L15	L14
Wed 19 Jun 24	Leave Without Pay	7.6	L14	L15	L14	RDO
Fri 21 Jun 24	Leave Without Pay	7.6	E06	L14	RDO	E06
Sat 22 Jun 24	Leave Without Pay	7.6	E06	RDO	E06	E07
Sun 23 Jun 24	Leave Without Pay	7.6	E07	E06	E06	n/h

C. What the record shows

In 206 rostered shifts across the fortnights held, the shortest break between consecutive shifts is fifteen hours. Not one break falls below twelve hours, and not one sits at the ten-hour Award minimum. The twelve shortest are all fifteen hours, and they are of two kinds: an 07:00-15:00 followed by an 06:00-14:00 the next day, and a 15:00-23:00 followed by a 14:00-22:00 the next day. The median short-interval break is sixteen hours. On this record the ten-hour minimum was not something the roster worked to; the roster ordinarily sat five or six hours above it.

The seven-hour break of 17 to 18 March 2024 is therefore more than twice as short as anything else the Appellant was rostered in the year, and it is the only break of its kind. The Respondent pleads that it was human error and not repeated. The record supports 'not repeated' and goes further: nothing remotely like it occurs anywhere else.

It also falls across a fortnight boundary, and it appears on no published roster. The roster for 4 to 17 March 2024 ends with the Appellant on 15:00 to 23:00 on Sunday 17 March. The roster for 18 to 31 March 2024, as published and as held, contains no line for him at all, although the Respondent admits he commenced at 06:00 on Monday 18 March. Read at 300 dpi, that roster lists Jeffrey, Abbott, De Iacovo, Conaghan, Court, Parry, Fitzpatrick, Sutton-Mason, Ismail, Hu, Malsbury, Nelson and Kendrick, and no Shepherd; the rosters immediately before and after it both carry his line and payroll number 388372. A late-to-early transition that straddles the boundary between two fortnightly rosters is visible on neither of them. That is the kind of gap a fatigue risk assessment of the roster exists to catch, and Metro South has stated in writing that no such assessment applied to the Switchboard before 30 June 2024.

Thirteen backward rotations. Counting transitions between blocks of shift types, the line rotates forward (start times getting later) 37 times and backward (start times getting earlier) 18 times, of which thirteen are a block of late shifts followed by a block of early shifts, with two to four days between. Dr Hawes recorded on 1 July 2024 that the Appellant reported 'manipulate his roster- so he works lates then earlies'. That pattern is in the rosters, thirteen times between April 2023 and June 2024, and it is the direction of rotation that the fatigue literature and the Queensland Health fatigue guideline treat as the more demanding one.

The rosters were reissued. 30 October to 12 November 2023 was issued as v2.0. The fortnights of 15 to 28 April and 29 April to 12 May 2024 each exist in two different versions, both labelled v1.0. The April change moved the Appellant's nights from 23 to 25 April to 26 to 28 April, which with the following fortnight produced six consecutive night shifts from 26 April to 2 May. The May change replaced earlies on 10 to 12 May with lates. The updated versions are also the first to carry After Hours Oncall rows for Ms Taylor and Ms Stibbard. Ms Reese's email of 10 May 2024 acknowledging 'a few rostering errors made by Chloe with regards to Cory's line in past rosters' sits between the two reissues.

Consecutive shifts and uncovered shifts. Runs of six or more consecutive rostered shifts occur eight times in the fortnights held, and runs of five a further eight times. Thirty-one shifts appear in the rosters' own Uncovered Shifts row, ten of them in the two fortnights of 18 September to 15 October 2023 and six in 4 to 17 March 2024.

Sick leave sits at the end of runs and at the turn of the pattern. Three consecutive nights in June 2023 all taken as sick; 21 to 22 November 2023 after five consecutive early starts, inside which falls the 16 November 2023 consultation recording poor sleep with shift work; 2 January 2024 on a night that followed an early; 19 March 2024 after the seven-hour break; 7 May 2024 on the third of four consecutive earlies; 13 to 14 May 2024; 31 May 2024 on an early after a late; and 7 to 9 June 2024, the last three shifts before the bereavement, all lates, all taken as sick. Every rostered day from 17 June 2024 is leave without pay.

What the published rosters cannot show. A published roster records the shifts as planned and the leave already approved when it was published. It does not record sick leave, which by its nature is taken after publication. The team's unplanned absence is therefore not countable from this set. What is visible is planned annual leave, N/A markings against casual staff, and the Uncovered Shifts row. The 22 working rosters scanned on 22 March 2026 are annotated by hand with S/L, LWOP and shift changes across the team, and are the only documents held in which team absence appears; they post-date the injury.

Caveats. Four fortnights in the window are not held: 10 July to 17 September 2023, 16 to 29 October 2023, 27 November to 10 December 2023, and 8 to 21 January 2024. Cells were read by eye from scanned images and must be checked against the page before use in a filing. The 18 to 31 March 2024 finding rests on the file as held; the employer's rostering system may hold a later version that includes the Appellant, and that version should be sought, because either answer assists: no later version means the shift was allocated off the published roster, and a later version means the roster was changed after publication.